ADMINISTRATIVE REVIEW TRIBUNAL

BRISBANE REGISTRY

Tribunal Numbers:	**2023/3361, 2023/3363 and 2023/4494**
First Applicant:	**VIDA REID**
Second Applicant:	**SIMON REID**
Third Applicant:	**FORWARD FOCUSED GROUP PTY LTD**
Respondent:	**COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION**

SECOND APPLICANT'S RESPONSE AND PROPOSED DIRECTIONS

in response to the Respondent's Proposed Minute of Order dated 14 August 2026

A. Scope and position

1. This response is filed by the Second Applicant, Mr Simon Reid, in matter 2023/3363. It does not state the position of, and does not bind, the First or Third Applicants, each of whom responds separately.

2. The Second Applicant does not seek to reopen the severance applications determined on 31 July 2026. He accepts that the three applications remain associated and are to be programmed and heard together. The use that may be made, as against any particular applicant, of evidence received in another application remains subject to relevance, procedural fairness and any question of privilege, and falls for determination as it arises.

3. The Second Applicant agrees with the substance of the Respondent's proposed orders 1 to 4, subject to the directions below as to sequence, particularisation and dates, and supports the matters being set down for hearing. His proposed directions are concerned with the sequence in which those steps occur, the particularisation of the case he must meet, a preliminary statutory issue capable of shortening the hearing, and the basis on which the hearing estimate is fixed. If the directions sought below are not made, he asks to be heard on the dates in the Respondent's proposed orders before any timetable is fixed. Nothing in this response, and no omission from it, is an admission or concession of any fact, allegation or contention advanced by the Respondent, whose case is contested in its entirety; the proposal of, or agreement to, any direction is not an acceptance that any allegation has substance; and nothing in this response waives any privilege of the Second Applicant, including the privilege against self-incrimination and penalty privilege.

B. The preliminary statutory issue

4. The banning order made against the Second Applicant on 21 December 2022 prohibited him from "providing disability supports and services to NDIS-funded participants". On internal review on 21 April 2023 the operative prohibition was broadened to "any involvement with or in the NDIS sector, in any capacity", including providing disability supports and services "directly or indirectly", providing labour hire workers to support NDIS providers, and providing "support, funding, guidance or assistance of any form" to an NDIS provider.

5. In *Sunflower Care Services Pty Ltd v Commissioner of the NDIS Quality and Safeguards Commission (No 2)* [2025] FCA 1442 at [127]–[141], the Federal Court held that an order under section 73ZN of the *National Disability Insurance Scheme Act 2013* (Cth) must prohibit or restrict engagement in specified activities, and must express those activities in terms sufficiently clear that the order is reasonably capable of being obeyed.

6. The Second Applicant does not submit that Sunflower automatically determines every issue. A preliminary determination should identify the operative prohibition in force at each date on which conduct is alleged, whether the impugned wording was authorised and, if not, whether it is severable, and whether the conduct particularised was legally capable of contravening the operative prohibition. Whether the conduct occurred, and what relevance, if any, it has to present suitability, are contested merits questions reserved to the hearing. The utility of the exercise is illustrated by the Respondent's own record: the internal review reasons record that the registration application for Dream Big Employment Pty Ltd was submitted on 29 October 2022 — before the notice of intention of 17 November 2022 and before the banning order of 21 December 2022.

7. The reasons of 31 July 2026 record at paragraphs 4 and 34 that the Second Applicant held no office in Forward Focused Group Pty Ltd between 3 January 2021 and 1 November 2022, that the individual applicants held their FFG directorships "albeit not at the same time", and that he is recorded as a director of Hybrid Hive Pty Ltd from 17 February 2022. Each claim period identified at paragraph 35 falls within the interval in which he held no office in Forward Focused Group Pty Ltd. Those facts do not of themselves resolve attribution; they are why an applicant-specific schedule is necessary. Paragraph 35 of the same reasons records, in the summary of the Respondent's case, that claims were made "for supports and services which were not provided to several participants"; the Respondent's submissions of 17 September 2025 at paragraph 54.3 put that matter as one where participants "have complained that they have not been provided with the service alleged". That allegation is contested and no finding has been made upon it.

C. Directions sought

1. **Section 70 material and supplementary tender bundle.** Within 7 days, the Respondent: (a) confirm that the complete set of documents required by section 23 of the ART Act, including an unredacted copy of each document the subject of its application of 7 May 2026 under section 70, has been lodged with the Tribunal; (b) serve every document not the subject of a non-disclosure claim, other than any document the subject of an existing non-disclosure or non-publication order of the Tribunal, including the orders of 26 July 2024; and (c) file and serve a schedule identifying each document withheld, the basis of the restriction sought, any legal professional privilege claimed (including the privilege holder and dominant purpose), the position on waiver, and whether any non-privileged factual material or annexure can be severed and disclosed; and (d) within 14 days, lodge and serve: (i) each complaint file listed in Attachment M to EC22-002103; (ii) Attachments I, J, K, L(a), P and Q to EC22-002103; (iii) Attachments C to F to EC22-002521; (iv) EC22-002429; (v) the NDIA statements listed as N(1) to N(33) in EC22-002103, with their exhibits; (vi) the native electronic file of Attachment M to EC22-002103 with its metadata and version history; and (vii) documents D22/169610 and D22/184618 — in each case excluding Attachment O to EC22-002103, Attachment G to EC22-002521 and any document the subject of the orders of 26 July 2024 — and, for any item not in the Respondent's possession or control, a

statement under section 24 of the ART Act to that effect identifying the agency or person that holds it.

2. **Determination of the section 70 application.** (a) Any applicant may respond to the schedule within 7 days of service; (b) the application be determined at the directions hearing or as soon as practicable thereafter, on the materials already filed including the Second Applicant's opposition of 19 May 2026, the Tribunal being at liberty to inspect the documents privately; (c) within 3 business days of determination, the Respondent serve every document or severable part to which access is permitted; and (d) if access to adverse factual material is restricted, the Respondent not rely on that material against an applicant without the applicant first receiving such gist of it as the Tribunal directs and a reasonable opportunity to answer.

3. **Certified instruments and delegations.** Within 7 days, the Respondent serve certified or sealed complete copies of the banning order and reasons of 21 December 2022, the internal review decision and reasons of 21 April 2023, the order as varied, the instrument of delegation relied upon for each decision, and evidence of the date on which each instrument was served and took effect.

4. **The Respondent's proposed disposition.** Within 21 days of the making of these directions, the Respondent file and serve a statement identifying: (a) the precise decision it will ask the Tribunal to make in matter 2023/3363 under section 105 of the ART Act; (b) if it seeks a substituted banning order, the complete operative wording, the specified activities, any conditions, the duration and the proposed temporal effect; (c) the version of section 73ZN of the NDIS Act, and any transitional provision, said to govern the original decision, the internal review decision and the Tribunal's decision; and (d) whether it relies upon section 73ZN(2B) or any other power or ground not relied upon in the decisions under review, and if so the basis on which that power is available, including in respect of conduct predating its commencement.

5. **The Respondent's position on Sunflower.** The statement in direction 4 also state whether the Respondent accepts that the reasoning in Sunflower requires any part of the order under review to be set aside; if not, each textual, statutory or factual distinction relied upon; and if severability is contended, the complete operative prohibition said to remain in each relevant period.

6. **Allegation schedule.** Within 21 days of the making of these directions, the Respondent file and serve a schedule stating, for every allegation relied upon against the Second Applicant: (a) the allegation, the conduct alleged and its date or period; (b) for a payment claim, the participant, the amount, the claim date, the entity that submitted it and the source record; (c) the act or omission of the Second Applicant personally, and where office or role is relied upon, the facts said to make the relevant function his responsibility rather than that of any other officer, employee or contractor; (d) for any allegation of intimidation or harassment, the participant, the date, the words or conduct alleged and the evidence relied upon; (e) for any alleged contravention of a banning order, the date of the conduct, the instrument and exact operative term said to have applied on that date, and the conduct said to breach it; (f) the source material and its maker, whether it was before the original decision-maker or the internal reviewer or is new, and the statutory proposition for which it is relied upon; (g) whether the maker of each personal account is presently intended to be called; and (h) for each payment claim in (b), every document in the Respondent's possession or control,

including material obtained from the National Disability Insurance Agency, that records or bears upon whether the support or service the subject of the claim was delivered — including rosters, shift or progress notes, service agreements, worker timesheets, plan-manager remittances and payment-review records — which the Respondent serve with the schedule, together with a statement whether material seized on 19 October 2022 relating to that participant exists and in whose custody it is.

7. **Investigation reliance.** Within 21 days of the making of these directions, the Respondent state whether it relies in matter 2023/3363 on the existence or continuation of any investigation, referral or proposed prosecution concerning the Second Applicant and, if so, identify the agency, the source and date of the information relied upon, and its status so far as known to the Respondent.

8. **Witness notice.** Within 21 days of the making of these directions, the Respondent file and serve a notice identifying each witness it presently intends to call, each statement or personal account on which it intends to rely without calling the maker, and any known unavailability.

9. **Preliminary issues.** Pursuant to sections 53 and 79 of the ART Act, after compliance with directions 1 to 8 and before the hearing of the factual merits, the following be determined on the certified instruments, the applicable legislation, an agreed chronology and legal submissions, without oral evidence, at a hearing at which the parties may make oral submissions: (a) the exact operative prohibition in force during each period in which a contravention is alleged; (b) whether the expressions "any involvement with or in the NDIS sector, in any capacity" and "directly or indirectly", and the inclusive labour-hire and assistance wording, identify specified activities authorised by section 73ZN(2) and are expressed in terms reasonably capable of being obeyed; (c) if any wording was not authorised, whether it is severable and what operative prohibition, if any, remained in each period, including the status of the original order; (d) whether the conduct particularised under direction 6 was legally capable of contravening the operative prohibition on the date alleged; and (e) the distinction between capacity for past contravention and the separate question, reserved to the final hearing, of what use, if any, may be made of the underlying conduct in the assessment of present suitability. The preliminary determination proceed by assuming, without deciding, that the conduct particularised occurred; make no finding as to credibility or present suitability; and be the subject of written reasons.

10. **Referral of a question of law.** Within 7 days after compliance with directions 3 to 8, any applicant may file proposed questions of law and short submissions (no more than 5 pages) on whether, with the President's agreement, a question should be referred to the Federal Court under section 185 of the ART Act; the Respondent may respond within a further 7 days (no more than 5 pages); and the request be determined before the factual merits hearing commences. If no referral is made, the preliminary issues in direction 9 be listed for determination as soon as practicable.

11. **Targeted attendance requests.** Within 14 days after service of the Respondent's Statement of Facts, Issues and Contentions and evidence, any applicant may serve a schedule identifying each statement-maker sought for cross-examination, the document and the disputed proposition, the reason attendance is material, and a time estimate; any dispute to be determined in accordance with the applicable practice direction.

12. **Statements of Facts, Issues and Contentions.** The Second Applicant's updated Statement and any further evidence, in all respects other than the alleged contraventions of the banning order, be filed 28 days after the latest of the implementation of the section 70 determination, compliance with directions 1 to 8 and the return date of any summons issued under direction 15; his contentions and any evidence on the alleged contraventions be filed within 14 days after the determination of the preliminary issues in direction 9 (or, if a question is referred, after the Federal Court's answer; or, if no preliminary issue is ordered, together with the updated Statement above); the Respondent's responsive Statement and evidence 28 days thereafter; any reply 14 days thereafter.

13. **Listing and estimate.** The matters be set down for hearing at the first available date after 4 December 2026 that accommodates the steps above, and the hearing of the factual merits not commence before the preliminary issues in direction 9 are determined. The estimated duration be fixed at a short further case-management event after compliance with direction 8 and the determination of any requests under direction 11, and after the interpreter arrangements in matter 2023/3361 are known; the Respondent's estimate of two days be reserved until then.

14. **Otherwise**, the Respondent's proposed orders 1 to 4 be made in a form conformed to the directions above as to sequence and dates; and the programming directions of 15 May 2024 be vacated and superseded by these directions.

15. **Non-party production.** Within 7 days of the making of these directions, any applicant may file and serve draft summonses under section 74 of the ART Act, confined to the participants and periods identified in the schedule under direction 6, directed to: (a) the Chief Executive Officer of the National Disability Insurance Agency, for (i) the business records seized under the search warrants executed on 19 October 2022 (Agency references 116694 and 116695; investigation INV22-080) so far as they record the delivery of supports or services to those participants, including rosters, shift and progress notes, service agreements, timesheets and accounting exports, together with a schedule of the material seized; (ii) the claims and payment data for those participants and periods, including the data set summarised in Attachment J to EC22-002103; and (iii) the payment-review and compliance-lock records concerning Forward Focused Group Pty Ltd and Hybrid Hive Pty Ltd from 3 May 2022; and (b) any plan manager identified in that schedule, for the invoices and remittance advices for those participants and periods. The Respondent and any person to whom a draft summons is directed may object within 7 days of service; subject to the determination of any objection at a case event, the summonses be issued returnable not less than 14 days before the applicant's updated Statement is due under direction 12.

16. **Liberty to apply** on reasonable notice.

Dated: _____ 2026

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Simon Reid

Second Applicant, in person